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Case Number: 22STCV04087 Hearing Date: July 14, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: July 14, 2026

Case Name: Caldwell v. Live Nation World

Wide, Inc., et al.

Case

No.: 22STCV04087

Matter: Motion for Summary Judgment or, in the Alternative,
Summary Adjudication

Moving

Party: Defendant LAFC Stadium

CO, LLC

Responding Party: None

Matter: Motion for Summary Judgment or, in the
Alternative, Summary

Adjudication

Moving

Party: Defendant LAFC Stadium

CO, LLC

Responding Party: None

Tentative Ruling: Defendant

LAFC Stadium CO, LLC's motion for summary judgment, or

in

the alternative, summary adjudication as to Caiden is denied.

Defendant

LAFC Stadium CO, LLC's motion for summary judgment is granted as to Corniel Plaintiffs.

Plaintiff

Caiden Caldwell, a minor, as successor-in-interest to the Estate of Darrell Caldwell, through his guardian ad litem Tianna Purtue ("Caiden") filed this action against Defendants Live Nation World Wide, Inc., C3 Presents, LLC, Bobby Dee Presents, Inc., Jeff Shuman, Enumer8, LLC, Brymo 123, Inc., Black Tide Events, LLC, the University of Southern California ("USC"), LAFC StadiumCo, LLC, NPB Global Consulting Groups, Inc., NPB Companies, Inc., CI Security Specialists, Inc., CISS Management Group, Hollywood Elite Security, Inc., Event Security Consulting & Operations, Inc., and Does 1 through 100. The Second Amended Complaint ("SAC"), filed August 19, 2024, alleges three causes of action for: (1) wrongful death – negligence; (2) wrongful death – premises liability; and (3) negligent hiring/retention/supervision training – wrongful death. This action, related cross-actions, and consolidated cases arise out of the December 18, 2021, incident that occurred at the "Once Upon A Time in LA" music festival ("Music Festival") which resulted in the murder of the artist Darrell Caldwell ("Decedent"), also known as Drakeo the Ruler ("Subject Incident").

Plaintiff

Darrylene Corniel ("Corniel") and Estate of Darrell Caldwell ("Estate") (collectively "Corniel Plaintiffs") filed their action against Live Nation Worldwide Inc., C3 Presents LLC, Bobby Dee Presents, Inc., Snoop Dogg's LLC, Jeff Shuman, USC, LAFC Sports LLC, Major League Soccer, LLC, CISS Management Group, CI Security Specialists, Inc. and Does 1 to 100. The FAC alleges three causes of action on behalf of the Estate: (1) wrongful death sounding in negligence; (3) wrongful death – premises liability; and (5) wrongful death –

negligent hiring, supervision, training, and/or retention. The FAC alleges three causes of action on behalf of Corniel for: (2) survival action sounding in negligence; (4) survival action – premises liability; and (6) survival action – negligent hiring, supervision, training, and/or retention.

On June 26, 2022, the Court consolidated the cases under the lead case *Caldwell v. Live Nation World Wide, Inc., et al.*

Defendant

LAFC Stadium CO, LLC, erroneously sued and served as LAFC STADIUMCO, LLC (“LAFC”) moves for summary judgment or, in the alternative, summary adjudication as against Caiden as to the First Amended Complaint. Caiden filed a notice of non-opposition.

Defendant

LAFC Stadium CO, LL, erroneously sued and served as LAFC STADIUMCO, LLC (“LAFC”), moves for summary judgment or, in the alternative, summary adjudication as against Corniel Plaintiffs. Corniel Plaintiffs did not file an opposition.

Legal Standard

“The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) A triable issue of material fact exists if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. (Ibid.)

“

When

deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi v. Centro Medico Urgente Medical Center (2008)

159 Cal. App. 4th 463, 467; Code Civ. Proc. § 437c, subd. (c).)

Requests for Judicial Notice

A.

Defendant's Motion for Summary Judgment Against
Caiden

LAFC

requests that the Court take judicial notice of Caiden's FAC and the Court's ruling on USC's motion for summary judgment on February 26, 2026. The Court grants both of LAFC's requests for judicial notice pursuant to Evidence Code section 452, subdivision (d).

B. Defendant's

Motion for Summary Judgment Against Corniel Plaintiffs

LAFC

requests that the Court take judicial notice of Corniel Plaintiff's FAC.

The Court grants LAFC's request for judicial notice pursuant to Evidence Code section 452, subdivision (d).

Analysis

A.

Defendant's Motion for Summary Judgment Against
Caiden

LAFC argues

that it is entitled to summary judgment, or in the alternative summary adjudication because there are no triable issues of fact with respect to the entire First Amended Complaint ("FAC"). (Not., 2:18-3:9.) However, LACF's motion against Caiden contains a substantial defect in its notice of motion and throughout its motion.

Summary

judgment is such a "drastic" remedy that it is important for all parties to comply with the procedural requirements. (Mediterranean Const. Co. v. State Farm Fire & Cas. Co. (1998) 66 Cal.App.4th 257, 262.) Code of Civil

Procedure section 1010 states that “Notices must be in writing, and the notice of a motion, other than for a new trial, must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based. (Code Civ. Proc., § 1010 (emphasis added); (Cal. Rules of Court, rule 3.1350.)

L AFC’s

notice of motion states that its motion against Caiden is as to his FAC. (Not., 2:23-26.) Defendant also affirms its arguments within the memorandum of authorities referring to Caiden’s FAC and filing the FAC as an exhibit in its present motion. (Mot., 1:5, 4:14; L AFC Ex. 12.) However, the operative Complaint in Caiden’s case is the SAC filed on August 19, 2024. (August 19, 2024, Caiden’s SAC.)

Because

L AFC has filed its motion to the FAC instead of the operative pleading, L AFC has not established that there is no triable issue of material fact as to all three causes of action in the SAC. Because L AFC failed to meet its burden, the burden does not shift to Caiden.

Therefore,

the Court denies L AFC’s motion for summary judgment against Caiden. The Court also denies L AFC’s motion for summary adjudication against Caiden’s FAC.

B. Defendant’s Motion for Summary Judgment Against Corniel Plaintiffs

L AFC moves

for summary judgment or, in the alternative, summary adjudication on the grounds that L AFC did not owe Corniel Plaintiffs a duty and did not proximately cause Decedent’s death. Moreover, the FAC alleges three causes of action: a wrongful death claim and a separate survivor claim. Because the evidence used in each cause of action is identical, the Court will address the three causes of action based on their elements.

First

and Second Causes of Action – Negligence (Wrongful Death) and (Survival Action)

““To

establish a cause of action for negligence, the plaintiff must show that the

'defendant had a duty to use due care, that he breached that duty, and that the breach was the proximate or legal cause of the resulting injury.' [Citation.] Recovery for negligence depends as a threshold matter on the existence of a legal duty of care." [Citation.] "[T]he existence and scope' of the defendant's duty is one of law to be decided by the court, not by a jury, and therefore it generally is 'amenable to resolution by summary judgment.' [Citation.]'" (Murphy v. Pina (2025) 115 Cal.App.5th 305, 322 (citations omitted).)

"A defendant cannot be held liable for the defective or dangerous condition of property which it did not own, possess, or control. Where the absence of ownership, possession, or control has been unequivocally established, summary judgment is proper." (Isaacs v. Huntington Memorial Hospital (1985) 38 Cal.3d 112, 134 holding modified by Ann M. v. Pacific Plaza Shopping Center (1993) 6 Cal.4th 666.) ""The proper test to be applied to the liability of the possessor of land in accordance with [Civil Code section 1714] is whether in the management of [one's] property [one] has acted as a reasonable [person] in view of the probability of injury to others." [Citation.] This duty is not limited to one who holds title over the land ""but, rather, [is] owed by the person in possession of the land ... because [of the possessor's] supervisory control over the activities conducted upon, and the condition of, the land."" (Moses v. Roger-McKeever (2023) 91 Cal.App.5th 172, 179 (Moses).)

LAFC argues

that Plaintiffs' cause of action for negligence fails because Plaintiffs cannot establish that LAFC owed Decedent and Corniel a duty. Specifically, LAFC argues that LAFC did not own, possess, or control the area where the Subject Incident occurred; (2) LAFC had no operational control over the area where the Subject Incident took place; (3) LAFC owed no duty to protect Plaintiffs or Decedent from third-party criminal acts; and (4) LAFC and C3 did not operate as a joint venture.

On December

1, 2015, USC leased portions of land to LAFC, which was leased from the Los Angeles Memorial Coliseum Commission. (Separate Statement of Undisputed Facts (SS), 1.) LAFC's property includes only the Sports Arena Property/Premises and does not include any part of Bill Robertson Lane, Hoover Street, Exposition Park Drive, or Martin Luther King Jr. Street, or Parking Lots 5 ("Yellow Lot"), 4 ("Pink Lot"), and 6 ("Green Lot"). (SS,

2-4; Ex. 18, 112-13 (Ex. A).) On December 15, 2021, C3 entered into a leasing agreement with LAFC to lease the Gold Lot and the Banc of California Stadium for the Festival ("LAFC Lease"). (SS, 14.) C3 applied for special permits and street closures from the City of Los Angeles/ Expo Center for Use of the Pink Lot, Green Lot, Yellow Lot, and street closures. (SS, 7, 8; LAFC, Exs. 2, 28.) The Pink Lot was the "Artist Parking" area, while the Yellow Lot was the "Backstage Area." (SS, 10, 11.)

LAFC argues

that events that led up to the Subject Incident and where the Subject Incident occurred were not on or a part of LAFC's property. (SS, 29-32, 41-42.) The Subject Incident occurred between the Pink Lot and Yellow Lot, east of Hoover Street, which were outside of LAFC's property and the licensed premises. (SS, 37, 38, 39, 41.) Additionally, LAFC argues that it did not have contractual or operational control over the area where the Subject Incident occurred, did not maintain, staff, or assign security to the area.

“ “[T]he

duty to take affirmative action for the protection of individuals coming onto one's property 'is grounded in the possession of the premises and the attendant right to control and manage the premises.' [Citation.] Without the 'crucial element' of control over the subject premises [citation], no duty to exercise reasonable care to prevent injury on such property can be found.” (Hamilton v. Gage Bowl, Inc. (1992) 6 Cal.App.4th 1706, 1710.)

LAFC argues

that it did not manage, supervise, or control security or crowd movement outside its premises. (Mot., 8:4-6.) LAFC contends that C3 was responsible for and handled security functions through the subcontracted security vendors. (Id. at p. 6-7.) LAFC was the venue licensor for C3 at Banc of California Stadium and the Gold Lot. (SS, 14-19.) Moreover, the security retained by LAFC was specifically assigned to be stationed on LAFC's property. (SS, 21-26.) Lastly, LAFC did not have the authority over security measures for the entire Music Festival. (SS, 47.) LAFC, as the venue licensor for a temporary use of the LAFC property, did not grant C3 use of adjacent property, nor did it ever own, nor could LAFC grant such use of land it did not own, use, or possess. LAFC had a contractual obligation to supervise and deploy security outside its premises. (SS, 25, 32, 47.)

Thus, LAFC

established that it did not have control over security for the Music Festival.

“As a

general rule, each person has a duty to exercise reasonable care to avoid causing injury to others. [Citation.] However, a person who has not created a peril generally has no duty to take affirmative action to protect against it, and a person generally has no duty to protect another from the conduct of third parties.” (University of Southern California v. Superior Court (2018) 30 Cal.App.5th 429, 440.) The special relationships doctrine is an exception to the no duty to act to protect others from conduct by third parties. (Delgado v. Trax Bar & Grill (2005) 36 Cal.4th 224, 235.)

LAFC also

argues that it did not owe Corniel Plaintiffs a duty to protect Decedent from third-party criminal conduct. As addressed above, LAFC argues that it did not create peril and did not control the location where the Subject Incident occurred. Also, Decedent and Plaintiffs did not enter LAFC’s property prior to the Subject Incident. (SS, 37-39, 41, 42, 49, 50.) For this reason, LAFC did not have a special relationship with either Decedent or Plaintiffs. Thus, Plaintiffs cannot impose a duty on LAFC under a theory of third-party criminal conduct.

LAFC also

asserts that it did not owe Plaintiffs and Decedent a duty because LAFC and C3 did not operate as a joint venture. “A joint venture exists when there is ‘an agreement between the parties under which they have a community of interest, that is, a joint interest, in a common business undertaking, an understanding as to the sharing of profits and losses, and a right of joint control.’” (Connor v. Great Western Sav. & Loan Ass’n (1968) 69 Cal.2d 850, 862; Simmons v. Ware (2013) 213 Cal.App.4th 1035, 1052–1053, as modified on denial of reh’g (Mar. 13, 2013) (Simmons).) All elements must be satisfied to establish that the parties were a joint venture. (Simmon, supra, 213 Cal.App.4th at p. 1054.)

Here, the

LAFC Lease makes it clear that the parties were not engaged in a joint venture. (SS 20; Ex. 1, ¶ 28.) The arrangement between the parties was based on a fixed rental fee and a surcharge rebate based on the number of tickets sold. LAFC was not exposed to sharing in the event’s losses. (Ex. 1, ¶ 28 [“No partnership or joint venture”].) C3 was also responsible for paying for all of

LAFC's expenses for the event, like security expenses. (SS, 20; Ex. 21; Thomas Decl., ¶ 20.) Thus, in the absence of shared losses and decision-making authority, LAFC cannot be viewed as a joint venture with C3.

Accordingly, LAFC has established its entitlement to summary adjudication on the first and second causes of action because the Corniel Plaintiffs cannot establish that LAFC owed them a duty under their negligence causes of action. The burden shifts to Corniel Plaintiffs to establish that there is a triable issue of material fact that LAFC did owe them a duty. Because Corniel Plaintiffs did not file an opposition, they have not met their burden.

Since Corniel Plaintiffs did not establish that a triable issue of material fact exists regarding the element of duty, the Court will not address the causation element.

Therefore, LAFC is entitled to summary adjudication as to Corniel Plaintiffs' first and second causes of action.

Third and Fourth Cause of Action – Premises Liability (Wrongful Death) and (Survival Action)

"The elements of a premises liability claim such as the one at issue in these proceedings are: a legal duty of care; breach of that duty; and proximate cause resulting in injury." (Moses, *supra*, 91 Cal.App.5th at p. 177–178.)

LAFC argues that it did not own, control, or possess the area where the Subject Incident occurred. The Court reintegrates LAFC's arguments and the Court's analysis regarding premises liability under the first and second causes of action of this ruling. Thus, without control or ownership, LAFC could not owe a duty to Decedent or Corniel.

Accordingly, LAFC has established that it is entitled to summary adjudication as to the third and fourth causes of action because Corniel Plaintiffs are unable to establish that LAFC owed them a duty as to their causes of action for premises liability.

The burden shifts to Corniel Plaintiffs to establish that there is a triable issue of material fact that LAFC did owe them a duty. Because Corniel Plaintiffs did not file an opposition, they have not met their burden.

Since

Corniel Plaintiffs did not establish that a triable issue of material fact exists regarding the element of duty, the Court will not address the causation element.

Therefore,

LAFC is entitled to summary adjudication as to Corniel Plaintiffs' third and fourth causes of action.

Fifth and Sixth Causes of Action –

Negligent Hiring/Retention/Supervision Training (Wrongful Death) and (Survival Action)

Negligence

liability will be imposed upon the employer if it “knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes.” (Delfino v. Agilent Technologies, Inc. (2006) 145 Cal.App.4th 790, 815.) “A principal who conducts an activity through an agent is subject to liability for harm to a third party caused by the agent's conduct if the harm was caused by the principal's negligence in selecting, training, retaining, supervising, or otherwise controlling the agent....” [Citation.] ‘Liability under this rule is limited by basic principles of tort law, including requirements of causation and duty.’ [Citation.] Furthermore, “[l]iability under this rule also requires some nexus or causal connection between the principal's negligence in selecting or controlling an actor, the actor's employment or work, and the harm suffered by the third party.” (Phillips v. TLC Plumbing, Inc. (2009) 172 Cal.App.4th 1133, 1140.)

LAFC

argues that it cannot be held liable for the “competency of its security” when it has been established that the Subject Incident did not occur on LAFC's premises. (Mot., 12:19-23.) The Court agrees. Throughout its motion, LAFC established that the Subject Incident did not occur on its premises.

Accordingly, LAFC has established that it is

entitled to summary adjudication as to the fifth and sixth causes of action because Corniel Plaintiffs are unable to establish that LAFC failed to exercise reasonable care in the hiring, training, and supervision of the security. The burden shifts to Corniel Plaintiffs to establish that there is a triable issue of material fact that LAFC failed to exercise reasonable care in the hiring, training, and supervision of the security. Because Corniel Plaintiffs did not file an opposition, they have not met their burden of proof.

Since Corniel
Plaintiffs did not establish that a triable issue of material fact exists as to

whether LAFC failed to exercise reasonable care in the
hiring, training, and supervision of the security.

Therefore,
LAFC is entitled to summary adjudication as to Corniel Plaintiffs' fifth and sixth
causes of action.

For the
foregoing reasons, LAFC is entitled to summary judgment against Corniel
Plaintiffs.

Conclusion

Defendant
LAFC's motion for summary judgment is denied as to Caiden.

Defendant
LAFC's motion for summary adjudication is denied as to Caiden.

Defendant
LAFC's motion for summary judgment is granted as to Corniel Plaintiffs.